

EARLY MODERN WORKSHOP: Jewish History Resources

Volume 14: Cultures of Record Keeping: Creation, Preservation, and Use in the Early Modern Period, Fordham University, New York, August 16-17, 2017

Construction, Reconstruction and Deconstruction: Stories about Records from the Ottoman Heartlands

Shuki Ecker, Touro College

The texts were selected in light of the general question: what kind of records did Ottoman Jewish communities maintain as part of their regular communal activities. They were further chosen to reflect procedures, considerations and conflicts that accompanied record keeping and were not usually recorded in the actual records produced. In most cases the records kept by the communities before the 19th century are no longer available. While references to the existence of various records can be found in a variety of contemporary and later sources (some of which I will mention), the texts translated offer a short selection of stories from “behind the scenes”. Reading the texts in terms of record keeping attest also to awareness, expectations, realities, usage, availability and relative importance attached to certain kinds of records. The texts will be mined for explicit and implicit conceptions and understandings of the records created in communal and personal levels, how were they preserved, used and accessed after being created, and what were their practical and legal implications. The evidence offered by these “stories” about records would be considered in three general categories – reflecting certain stages in the life of the records – initial construction, and later reconstructions and deconstructions.

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Yosef Almosnino, *Edut biYehosef* (Istanbul 5471 – 1710/11), part 1, section 4, p. 32 columns 1-

Introduction to text 1:

Rabbi Yosef Almosnino (1642*-1688*), born to a well known Salonica rabbinical family, studied in the main Yeshiva in Jerusalem (*Beit Yaakov*), appointed rabbi of Belgrade (1662*) after his maternal uncle (rabbi Yehuda Lerma of Istanbul) and his father-in-law (rabbi Simcha Hacoheh). Circa 1676 he was asked to solve a controversy involving the wealthiest man in the community, who acted contrary to a community decision accepted in 1670/1. He ruled that the previous community decision was not binding, has already been broken, and should be ignored - like so many other decisions that were practically ignored. The text is an extract from his arguments on the matter. He attempts to explain why the decisions made by a congregation can be undone without any special procedure.

Belgrade Jewish neighborhood is reported to have been burned and most documents destroyed several times – before 1647, in 1688 and in 1795, furthermore, the community was repeatedly dispersed and exiled, and changed its structure, or faced destruction following several military campaigns, events which also included considerable destruction, fires and looting: 1688, 1717, 1739, 1789, 1806/7, 1813, 1862, 1915, 1941/2. There are no known community archives or record books from the period that have survived these catastrophes.

Almosnino's book was the only manuscript that was in his possession when he died as a captive shortly after being exiled from Belgrade in 1688. It was printed by his son in Istanbul.

* I have not translated halachic discussions, quotes and references to other books. These are marked in the Hebrew text by [$>$] [$<$].

Translation of the text:

[...] We see such occurrences every day in this city, so many decisions of the congregation [*haskamot*] that are made even with bans and sometimes clearly forbidding certain actions, and even then people disobey them, and no one says a word or lifts a finger. How many times was it decided [agreed] in [the Jewish community of] this city to ban bringing non-Jewish musicians with all kinds of their songs to wedding celebrations and circumcision ceremonies, and how many times was it decided that the women will not walk to the bathing-house or to non-Jewish houses/neighborhoods with objects of gold and silver, or wearing clothes weaved or embroidered with silver threads called *dibas*, or with food and drinks [namely] certain kinds of dishes of meat and wine, and all were forbidden in order to avoid the impression that they are wealthy, for that would lead to more taxes and expenses and disbursements, and to excesses against the people of the community. And there are many examples of this kind. And inspite of all this, the very people of the congregation who decided and agreed upon these measures ignore and abandon them without consulting a rabbi and without any formal undoing. Similarly, they have agreed and decreed in an ancient decision [*haskama*] that the women shall not walk or stroll out of the city or to gardens and orchards that belong to non-Jews within the city without being accompanied by men, in order to avoid the danger of some compromising situation - God forbid – and when caught alone, the unmarried girl may scream and no one will come to her rescue. And inspite of all this, it happens every day that they walk by themselves, and no one makes any protest or speaks up against it, and those who disobey are not banned and excommunicated, and even a simple declaration by the representative of the community [prayer leader] that the decision and ban were undone, as was ruled by the leading rabbinic authorities, is not made. And how many other decisions agreed upon [by the congregation] [*haskamot*], [and ignored in similar fashion, are there], they are multiple, better not mention [all of them]. And is all of this a reason for us to say that [all of these people of the congregation] have (God forbid) broken [legally binding community] decisions [*haskamot*] [enforced] by ban and excommunication? [- Clearly not! -] Not even the least knowledgeable Jews can be suspect of such a crime! [...]

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Mordechai Yosef Meyuhas, *Berachot Mayim* (Salonica, 5549 – 1788/9), section 334, p. 85 column 2.

Introduction to text 2:

Rabbi Moshe Mordechai Yosef Meyuhas (1733-1805), born and raised in Jerusalem in a prominent rabbinical family. The text is part of a discussion of community decisions [*haskamot*] following a ruling made by rabbi Yehuda Kassin of Aleppo accepting the position of subjects of foreign powers living in the city (the *Francos*) that they are not bound by the regulations and decisions [*takanot* and *haskamot*] of the local community.

Rabbi Yitzhak Hacoen Rappaport (1680*-1755), whose actions are described by Meyuhas, was born in Jerusalem, a scion of a rabbinical family from Lublin. He studied in the *Beit Yaakov* Yeshiva, and was sent in 1709 by the community of Safed as emissary to Istanbul, Anatolia and the Balkans. When passing through Izmir in 1714 he was appointed one of the two chief rabbis of the community. He returned to Jerusalem in 1749 and was appointed chief rabbi of the community.

The known book of regulations of the Jerusalem community is a compilation published in 1842, incorporating regulations from mid-18th century. It is not clear which regulations were cancelled in the event described. This appears to be the only source mentioning this event.

Translation of the text:

This is to testify that it so happened in the holy city of Jerusalem [may it be rebuilt] – when the phenomenal rabbi, the head of the city, the esteemed Yitzhak Hacoen, came from Izmir in the year 5509 [September 1748 – September 1749], and he had been one of the rabbis of the holy city before, and [then] traveled to Izmir and settled there for 40 years, and [then] returned. And upon his return he asked for the record book [*pinkas*] of communal decisions and decrees [*haskamot*] which he had been familiar with [while living] in the holy city [of Jerusalem], but this [record book] could not be found. Then he published several *haskamot* he was well versed

in, but he did not want to renew them, he rather sent to all the rabbis and the rabbinical courts, [asking them] to examine and contemplate the undoing of these decisions and decrees [*haskamot*] and be prepared for the day of the scheduled meeting, and so it was that they all agreed to undo them, and they convened in his house and they all unanimously agreed to undo them and they have indeed undone them, and all of this took place in public.

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Abraham bechor Avigdor, *Zachor leAbraham* (Istanbul 5587 – 1826/7), section 57, p. 64 columns 2-3.

Introduction to text 3:

Abraham bechor Avigdor (d. 1786*) was a prominent rabbi and head of one of several rabbinical courts in Istanbul. Married to the daughter of a well known rabbi, who had his wealthy patrons, he was part of the local rabbinical establishment. Presumably a native of Edirne, where he studied and had links to local rabbinic families, he was already a recognized rabbi circa 1733. By 1751* he was also present in Istanbul, at least on occasions. The evidence for his activity in Istanbul is mostly from the period 1760-1780. His book was published by his grandson, many years after his death.

The text was written during the Ottoman-Russian war (1768-1774). The military debacle and the growing expenses of the war created an acute fiscal crisis. The Ottoman authorities took urgent measures and exacted war contributions from many sectors, including the various communities in the capital. The Jewish community had to procure a very large sum in cash on a very short notice. This disrupted the routine procedures used to balance the community budget and led to emergency measures within the community aimed at obtaining the required sums by any means possible. The wealthy and prominent office holder in the community were already invested in the war effort and were facing a financial crisis of their own, hence they could not shoulder the financial burden in its entirety as has been the practice, and there was no way to avoid recruiting all the resources the community leadership could tap into. The community already had several taxes in place, including *gabella* [sales tax] on meat and cheese, however, many members of the community, including a large number of taxpayers have joined the campaign (providing mostly logistical support) and their share of the taxes was not forthcoming either. Levying new taxes, which was rejected a year before, seemed the only feasible course of action.

The Jewish community of Istanbul, by far the largest Jewish community in the world from the 17th to the early 19th century, has left very few communal records

of that period. Only a small number of record books, and scattered testimonies in responsa literature, attest to the existence of a vivid culture of record keeping. The missing records can be blamed mostly on the frequency of conflagrations, in a crowded city built mostly of wood. Special studies have been devoted to the effects of fires and earthquakes on the Ottoman metropolis. Some of the most devastating conflagrations, which decimated entire neighborhoods, and hundreds or thousands of Jewish residences and institutions occurred in 1589, 1660, 1766, 1870. Well over 100 major fires have been recorded for the period 1560-1870. Many fires caused the relocation of Jewish population and institutions. Major reforms in the 17th and 19th centuries (especially circa 1690 and 1830) rendered many records obsolete, disposed of the institutions that maintained and preserved them, and thus discouraged their further preservation.

Translation of the text:

Section 57

This year, the year 5533, [in the month of Tishri? = October? 1772], a small group of the tax payers of the community [of Istanbul] appointed deputies to supervise the general affairs and budget of the entire community, eleven men from amongst them, and above them two rabbis who are also among the most important tax payers, great in learning and in wealth, and they put this in writing and signed and have entrusted in their hands enough authority to lead the community. And this is what they decided to do: To collect from everyone everything he owed [so far] based on the evaluation of the assessors [who were appointed by the community in previous years] and the tax quota that they have assigned to him. However, from this day on there will be no individual assessment of each person based on his wealth. Rather the tax quota will be assigned on each and every one as it would seem fit in their eyes, and there will be no assessment of wealth, for this brings the evil eye, and the notion of [individual] assessment will never be mentioned again from this time on. These they agreed upon and decreed with oaths and restrictions. They have further agreed that the aforementioned supervisors will in any case institute a *gabella* tax on wine in the manner that they will see fitting, whether it be sanctioned by the Law or not. And here there were three regulations [*takanot*]. And the rabbis, the three shepherds assigned to oversee the general affairs and budget of the city's community, signed and approved. And after they have done all of this, some of the supervisors came to me and told me that it is necessary that I will sign as well. And my reply was that one who did not witness the new month is not told to come and testify [that he did], that I was not present at the time [of their deliberations] and knew not their arguments, nor the foundations on which this agreed decree [*haskama*] was based and why it was so concluded. So, the first [regulation], to collect the arrears, is very very good, but the second one seems to

me to be a scourge, as it is the opposite of all rabbinic sources and the opinions of all rabbinic authorities, who all agree that the Law is that taxes are to be payed based on wealth, and even if this was not the Law, that was the custom, and the custom takes precedence, even more so when this is both the Law and the custom. [As far as] the third [regulation], to institute a *gabella* tax on wine [is concerned], we have already discussed this issue last year, during the tenure of the late esteemed rabbi Shlomo Alfandari and we have agreed [not to impose it] as is written above [section 56], and I will stand my ground and will not yield, and what I have concluded to be the way the heavens directed me I will not relinquish, so help me God, May it be so Amen.

And I see that most of the rabbis of the city tend to approve the decision of the leading men of the community to obligate wine sellers to pay a new *gabella* tax, based on their own reasons, but not I, and the possibility that they [all] sign to uphold the *gabella* and require me to sign with them, because they are the majority and the Law says that “the majority rules”, that made my heart sad, and I stood trembling, [considering] what would be the right way [to take] in the eyes of God, and then I saw what had been written by [... references to previous rabbinic authorities and their opinions on the matter ...], and thus, I must sign together with the majority, against my own opinion. Because this is the proper thing to do. [... additional references ...]

And as I suspected in the matter, so it happened, because all the rabbis declared that for the well being of the community a *gabella* tax on the wine needs to be introduced according to the will of the leading men of the community, and they beseeched me, and I said why do you quarel with me, the three rabbis who need to sign on all matters related to the affairs of the entire community have already consented and signed. And you see that the other rabbis you have gathered and assembled for this occasion indeed consent, let me be. Nevertheless, I could not avoid it, for it came close to open conflict, so I [finally] decided to sign, and next to my signature I wrote “I have also been present with the rabbis, the 3 pillars upon which the Jewish community relies for all that concerns the affairs of the entire community, and we have discussed and negotiated the matter and this is the decision that was issued by all of us”, and I have signed my name ABA [Abraham bechor Avigdor]. And my intention was to imply that the decision was not mine, but rather that this was the decision that was issued, and as for myself, if this will come to my hands [in ruling] this is not how I will decide. [... references to previous cases and arguments ...] Be it as it may, the way in which I signed fulfilled my obligations in all regards, for while signing, I have also indicated my own opinion.

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יוסף אלמושנינו, עדות ביהוסף (קושטאנדינה, תע"א), חלק א, סימן ד, דף לב עמודות א ב.

אנו רואים מעשים בכל יום פה העירה כמה וכמה הסכמות שנעשות אפילו בחרם ולפעמים למיגדר מלתא ואפי' [לו] הכי עוברים עליהם ואין פוצה פה ונודד כנף כמה פעמים הסכימו בחרם פה העירה שלא להביא מנגנים גוים וכל מיני זמרא שלהם במצהלות חופות חתנים ובשמחת מילה וגם כמה פעמים הסכימו שלא תלכנה הנשים לבית המרחץ או לבתי גוים לטייל בחפצי זהב וכסף ולבושים הנארגים בחוטי כסף הנקרא דיבא"ש ובמאכל ומשתה במיני תבשילין של בשר ויין והכל למיגדר מלתא שלא להתנאות בפני העמי"ם [ם] שהם עשירי"ם [ם] עם כי מחמת זה יתרבו מסים והוצאות ופיזורים ויאכלו את ישראל בכל פה וכיוצא בזה רבו כמו רבו ועם כ"ז [=כל זה] המסכימים עצמם מבטלים אותם בלי שום שאל' [ת] חכם ובלי שום התרה וכיוצא באלו הסכימו בהסכמה קדומה שלא תלכנה הנשים חוץ לעיר לטייל או בתוכה לגנות ופרדסים של גוים בלתי חברת אנשים עמהם שלא תצא ח"ו [=חס וחלילה] איזה פרצה וכשתהיין לבדן צעקה הנערה המאורסת ואין מושיע לה ועכ"ז [=ועם כל זה] מעשים בכל יום שהולכות לבדן ואין מוחה ופוצה פה ואין נוהגים עם העובר דין מוחרם ואפילו שיעמוד הש"ץ [=השליח צבור] ויאמר הותר החרם כמו שכתבו הפוסקים אין עושים וכמה הסכמות אחרות רבו מספרם הס' כי לא להזכיר וכי בשביל זה ח"ו [=חס וחלילה] נאמר שעברו על הסכמות בחרם והלא אפי' [לו] ריקים שבישראל לא נחשדו על כך

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Mordechai Yosef Meyuhas, *Berachot Mayim* (Salonica, 5549 – 1788/9), section 334, p. 85 column 2.

מרדכי יוסף מיוחס, ספר ברכות מים (שאלוניקי התקמ"ט), סימן של"ד, עמ' פה עמודה ב'.

זאת תהיה לעדה שכך היה מעשה בע"הק [=בעיר הקדש] ירו' [שלים] תובב"א [=תבנה ותכונן במהרה בימינו אמן] בבא הרב המופלא ריש מתא כמהר"ר [כבוד מורנו הרב רבי] יצחק הכהן מאיזמיר שנת התק"ט [ספטמבר 1748 – ספטמבר 1749] והוא היה אחד מרבני עיר הק' [דש] מקודם לכן והלך לאיזמיר וישב שם מ' שנה וחזר ובחזרתו בקש פנקס ההסכמות הידוע לו בע"הק [=בעיר הקדש] ולא נמצא ואז פרסם כמה הסכמות שהיה בקי בהם ולא רצה לחדשם אלא שלח לכל הרבנים והבתי דינים שיעיינו בהיתר ההסכמות ויהיו מוכנים ליום הועד וכך היה שכולם הסכימו להתירם ונתוועדו בביתו וכולם שוין לטובה הסכימו להתירם והתירו' [ן] היה זה בפומבי.

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אברהם בכ"ר אביגדור, זכור לאברהם (קושטאדינה, תקפ"ז), סימן נ"ז, עמ' סד עמודות ב ג.

סי' [מן] נ"ז

הא שתא שנת טו"ב ויש"ר [תקל"ג] על כן יורה וכו' [= תהלים כה ח = מחזור מעריב יום כפור = חודש תשרי?] קמו מקצת העם מפורעי מס והעמידו משגיחים על ענין הנהגת כוללות העיר אחד עשר אנשים מהם ועל ראשיהם שני חכמים שגם המה מפורעי מס מן החשובים תורה וגדולה בהם וכתבו וחתמו ונתנו בידם יכולת מספיק להנהיג את העם וזה הדבר אשר יעשו שיגבו מכל אדם כל מה שהוא חייב ממה שהעריכו אותו המעריכים ושמו מס עליו. אבל מהיום והלאה לא תהא כזאת להעריך לאדם כמה ממון יש לו. אלא כאשר יראה בעיניהם לשום משא על איש ואיש כאשר יראה בעיניהם ולא יזכר שם עריכה על הממון שיש לו כי ע"ז [=על זה] שולט עין הרע ולא יזכר שם עריכה מעתה ועד עולם אלו דברים עשו בהסכמתם בכח אלות וחומרות. עוד הסכימו שיעשו אלו המשגיחים הנז' [כרים] עכ"פ [=על כל פנים] גאביל"ה על היין כפי אשר יראה בעיניהם בין שיהיה כדין ובין שלא כדין הרי כאן שלשה תקנות וחתמו הרבנים שלשת הרועים העומדים רבנים על כוללות העיר. ואחר עשותם את כל אלה כן באו אלי מן המשגיחים ואמרו לי שהצורך הוא שגם אני אחתום והיתה תשובתי אין אומרים למי שלא ראה את החדש שיבא ויעיד שאנכי לא נמצאתי במעמד ובסודם ולא ידעתי על מה אדניה של הסכמה זו יצא הדין כך הראשונה לגבות הבאקי"ש טובה היא מאד מאד אבל השניה כנגע נראה לי שהיא הפך כללה תנאי וכללה אמוראי וכל הפוסקים ראשונים ואחרונים שכתבו שהדין הוא לפרוע לפי ממון ואפילו אם לא היה הדין כך כבר נהגו כך והמנהג הוא העיקר כ"ש [=כל שכן] שהוא דין ומנהג. גם השלישית לתקן גאביל"ה על היין כבר נשאנו ונתננו בדין הזה אשתקד בזמן הרב כמהר"ש [=כבוד מורנו הרב שלמה] אלפאנדארי זלה"ה והסכמנו ככתוב לעיל [סימן נ"ו] ואני על משמרתי אעמוד ואת אשר הורוני מן השמים לא אסור ממנה וה' אלהים יעזור לי אכ"ר.

ורואה אני את פני רוב בניין ורוב מניין מחכמי העיר שדעתם להסכים עמהם של הגבירים לחייב למוכרי יין לפרוע גאביל"ה חדשה מטעמים שנראה להם ולא כן אנכי עמדי ואם הם יחתמו לקיים הגאביל"ה ויבקשו ממני לחתום עמהם כיון שהם הרבים והתורה אמרה אחרי רבים להטות ע"ז [=על זה] היה דוה לבי ועמדתי מרעיד איזוהי דרך ישרה בעיני האלהים וכעת ראיתי מ"ש [=מה שכתב] [<] הכנה"ג סי' י"ט בהגהת הטור אות _' שדבר זה מחלוקת מהר"ם מטרנאני בח"ב סי' קע"ג כתב שאין צריך לחתום ומרן ב"י [=בית יוסף] כתב שצריך לחתום והרדב"ז כתב דאם חתימתו גורמת למניעת המעשה מחייב הוא לחתום ענ"ד וראיתי למהר"י באסאן שהסכים עם מהרימ"ט לאסור אשה על בעלה

ככתו' [ב] בתשו' [בות] מהרימ"ט א"ה [=אבן העזר] סי' א' ובתשו' [בות] מהר"י באסאן סי' פ"ו הביא המעשה ההוא והוא קובל ומתרעם שנעשה שלא כדין יע"ש [=יעוין שם] והוא פליא [>] וכן אני מוכרח לחתום עם הרבים הפך סברתי. כי כן ראוי לעשות.

[<] וחזות קשה ראיתי שמרן ב"י נחלק עם הרב המבי"ט ככתוב בח"א סי' נ"ה בדין גבית כתובת אלמנה שנתגרשה בגט ש"מ אם דינה לגבות כאלמנה או כגרופה וכפי מ"ש שם מרן היה א' מהדיינים והיה חולק עם שאר החכמים ובעבור כבודו לא רצו לפסוק הדין באותו יום עד שנתועדו פ"ב ביום אחר ואז אמר להם כבר אמרתי לכם דעתי אתם הרבים תעשו כפי מה שיראה בעיניכם ואח"כ כתב פסק דין הפך דבריהם והרב המבי"ט כתב עליו והשיגו ממשנת ומנין לכשיצא הדיין וכו' יע"ש. [>]

והנה בנדון דידן כאשר דמיתי כן היתה כי כל החכמים אמרו כי מפני תיקון העיר יש לעשות גאביל"ה על היין כרצון הגבירים והפצירו בי ואני אמרתי למה תריבון עמדי הרי שלשת הרבנים שהם בעלי החתימה לכל דבר כוללות העיר כבר הסכימו וחתמו. וגם שאר חכמים שאספתם וקבצתם במעמד הזה הנה הנם מסכימים הניחו לי ולא יכולתי להתאפק כי היה בא הדבר לידי תגר ואמרתי אחתום וכתבתי אחר חתימתי גם אנכי נמצאתי עם הרבני' [ם] ג' עמודי התוך אשר בי' [ת] ישראל נכון עליהם לכל דבר כוללות העיר ונשאנו ונתננו בענין וכך יצא הדין מבינינו וחתמתי שמי אב"א [=אברהם בכ"ר אביגדור]. וכונתי לרמוז כי לא מלבי היה הדין כן אלא כן יצא הדין מבינינו וכשאני לעצמי אם יבא מעשה לידי איני מורה כן. [<] ועיין בס' דבר משה ח"מ [=חושן משפט] סי' ד' שכתב שהרב מר אביו ציוה לדיין השלישי יחתום עם ב' חבריו מטעם אחרי רבים להטות ומהר"ש פ' לורינטין בקונטרס קראו בית הרוואה כתב על ענין זה ונתן טעם לדיין הג' שלא היה רוצה לחתום שאפשר שלמחר יבא מעשה לידו והוא צריך לדון הפך יע"ש [=יעוין שם] באורך וכמדומה לי דבדידה היה המעשה שהוא היה השלישי [>] איך שיהיה לפי מה שחתמתי אני יצאתי ידי חובה מכל הצדדים שהרי גיליתי דעתי בחתימתי.